

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Sonia Landino	Team: Squad #15	CCRB Case #: 201508205	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 05/19/2015 11:40 PM	Location of Incident: In the vicinity of Boerum Street and Bushwick Avenue	Precinct: 90	18 Mo. SOL 11/19/2016	EO SOL 11/19/2016	
Date/Time CV Reported Mon, 09/28/2015 8:04 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Mon, 09/28/2015 8:04 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT John Coyle	04379	934694	PBBN AC
2. POM Marcel Francis	05240	948983	PBBN AC
3. POM Hector Justinico	10270	949153	PBBN AC

Officer(s)	Allegation	Investigator Recommendation
A.SGT John Coyle	Abuse: Sgt. John Coyle stopped the vehicle in which § 87(2)(b) was an occupant.	
B.POM Hector Justinico	Abuse: PO Hector Justinico frisked § 87(2)(b)	
C.POM Hector Justinico	Abuse: PO Hector Justinico searched § 87(2)(b)	
D.POM Marcel Francis	Abuse: PO Marcel Francis searched the vehicle in which § 87(2)(b) was an occupant.	
E.POM Hector Justinico	Discourtesy: PO Hector Justinico spoke discourteously to § 87(2)(b)	
F.POM Marcel Francis	Discourtesy: PO Marcel Francis spoke discourteously to § 87(2)(b)	
G.POM Hector Justinico	Abuse: PO Hector Justinico refused to provide his name and shield number to § 87(2)(b)	
H.SGT John Coyle	Abuse: Sgt. John Coyle refused to provide his name and shield number to § 87(2)(b)	
I.POM Marcel Francis	Abuse: PO Marcel Francis refused to provide his name and shield number to § 87(2)(b)	

Case Summary

On September 28, 2015, § 87(2)(b) filed this complaint via the CCRB's online website (BR01).

On May 19, 2015, at approximately 11:40 p.m., § 87(2)(b)'s vehicle was stopped in the vicinity of Boerum Street and Bushwick Avenue in Brooklyn by Sgt. John Coyle, PO Marcel Francis, and PO Hector Justinico of Patrol Borough Brooklyn North's Anti-Crime Unit **(Allegation A)**. PO Justinico approached § 87(2)(b)'s driver-side window and informed § 87(2)(b) that his vehicle was stopped because his window tints were too dark and requested his identification, to which § 87(2)(b) provided his New Jersey driver license. Without conducting a warrant check, PO Justinico returned § 87(2)(b)'s license and directed him to exit his vehicle. Once § 87(2)(b) exited his vehicle, PO Justinico directed him to turn around and place his hands on top of his vehicle. PO Justinico proceeded to frisk § 87(2)(b)'s arms, torso, waistband, legs, and all four of his pants pockets **(Allegation B)**. PO Justinico also searched inside all four of § 87(2)(b)'s pants pockets **(Allegation C)**. Once the frisk and search were concluded, PO Justinico escorted § 87(2)(b) to the rear of his vehicle where Sgt. Coyle was standing. § 87(2)(b) then observed PO Francis searching inside his vehicle's glove compartment, center console, door panels, and underneath the front and back seats **(Allegation D)**. § 87(2)(b) told the officers that he did not provide any consent for his vehicle to be searched and in response, PO Justinico stated, "Stop being a smart ass. As long as you're going to be a wise ass, where did you get your fucking law degree fam?" **(Allegation E)**. § 87(2)(b) asked why his vehicle was being searched if he was pulled over for his window tints, but none of the officers provided a response. PO Francis exited § 87(2)(b)'s vehicle with a roll of parking ticket envelopes and asked § 87(2)(b) whether his record would show anything about his parking tickets. § 87(2)(b) told the officers that they could check his record if they wanted to, but he was already on a payment plan for the parking tickets. PO Francis returned the roll of parking ticket envelopes inside § 87(2)(b)'s vehicle and stated, "Don't be a fucking smart ass. We can make this the worst night of your life" **(Allegation F)**. Either PO Justinico or PO Francis then stated, "This is the luckiest fucking night of your life" **(within Allegation E and Allegation F)**. Without issuing a summons to § 87(2)(b) the officers began walking back to their unmarked police vehicle in order to leave. § 87(2)(b) requested all of the officers' names and shield numbers multiple times, but allegedly none of the officers responded to his request **(Allegation G, Allegation H, and Allegation I)**.

When the officers entered their unmarked police vehicle, § 87(2)(b) ran back to his vehicle and opened his driver-side door in order to get his cell phone to photograph the officers' unmarked police vehicle. Simultaneously, the unmarked police vehicle hit § 87(2)(b)'s driver-side door that was still opened, causing the door's bottom hinges to snap off and dents to § 87(2)(b)'s fender. When PO Justinico reversed the unmarked police vehicle, Sgt. Coyle asked § 87(2)(b) for his New Jersey license so an accident report could be prepared. At the same time, Sgt. Coyle had taken his shield out from underneath his shirt which provided § 87(2)(b) the opportunity to write down Sgt. Coyle's shield number. § 87(2)(b) refused to provide his identification to Sgt. Coyle as it would have been a conflict of interest since the officers were part of the accident and proceeded to call 911 for assistance. After some time, two unidentified, uniformed officers from the 90th Precinct arrived and spoke with Sgt. Coyle, PO Justinico, and PO Francis. The two unidentified, uniformed officers from the 90th Precinct gave

§ 87(2)(b) a piece of paper with the 90th Precinct stationhouse address and told § 87(2)(b) to go there to get his accident report. § 87(2)(b) and all of the officers then left the incident location.

Mediation, Civil and Criminal Histories

- § 87(2)(b) rejected mediation as an alternative to resolve this complaint § 87(2)(b)
- As of October 27, 2015, § 87(2)(b) has not filed a Notice of Claim with the New York City Office of the Comptroller in regards to this incident (BR06).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- Sgt. Coyle has been a member of the service for 11 years and has 6 CCRB allegations, none of which have been substantiated. § 87(2)(g)
- PO Francis has been a member of the service for 5 years and has 6 CCRB allegations, two of which were substantiated in a prior case. In case number 201408251, one physical force and one discourtesy allegation were substantiated and he was issued Command Discipline A.
- PO Justinico has been a member of the service for 5 years and has 7 CCRB allegations, none of which have been substantiated. In case number 201212700, a discourtesy allegation was closed as victim uncooperative.
- This is § 87(2)(b)'s first CCRB complaint (BR02).

Video Footage

- § 87(2)(b) provided two video recordings that he captured after his driver-side door was hit by the unmarked police vehicle. Since the video footage was taken after the accident, the two video recordings do not capture any of the allegations (BR14-BR15).

Findings and Recommendations

Allegations Not Pleaded

- § 87(2)(g)
- § 87(2)(g)

Allegation A – Abuse of Authority: Sgt. John Coyle stopped the vehicle in which § 87(2)(b) was an occupant.

It is undisputed that § 87(2)(b)'s vehicle was stopped by Sgt. Coyle, PO Francis, and PO Justinico.

Sgt. Coyle, PO Francis, and PO Justinico noted in their memo books that § 87(2)(b)'s vehicle was stopped for tinted windows (BR03-BR05). During their sworn statements, Sgt. Coyle, PO Francis, and PO Justinico corroborated that § 87(2)(b)'s vehicle was stopped because all four of the vehicle's windows were excessively tinted which restricted their view inside the vehicle. § 87(2)(b) acknowledged that his vehicle's windows were tinted and he had rolled down his windows when he was pulled over. § 87(2)(b) informed the officers that he was not aware of the legal percentage for tinted windows or that the legal percentage was different in New York City.

According to Police Department v. Napoleoni, OATH Index Nos. 1815-16/00 (Jan. 9, 2001), police officers may stop a vehicle when the officer reasonably suspects a violation of the New York State Vehicle and Traffic Law (BR07).

§ 87(2)(g)
[REDACTED]

Allegation B – Abuse of Authority: PO Hector Justinico frisked § 87(2)(b)

Allegation C – Abuse of Authority: PO Hector Justinico searched § 87(2)(b)

It is undisputed that PO Justinico frisked § 87(2)(b) § 87(2)(g). Both Sgt. Coyle and PO Justinico's memo book entries confirmed that § 87(2)(b) was frisked during the vehicle stop (BR03-BR04).

§ 87(2)(b)'s initial email complaint (BR01), phone statement, and sworn statement are consistent with him being frisked and searched by PO Justinico. According to § 87(2)(b) once he exited his vehicle in compliance with PO Justinico's directive to do so, PO Justinico directed him to turn around and place his hands on top of his vehicle's roof. PO Justinico began frisking § 87(2)(b)'s arms, torso, waistband, legs, ankles, and pants pockets. PO Justinico also searched inside § 87(2)(b)'s four pants pockets. Once nothing was procured from the frisk and search, PO Justinico led § 87(2)(b) to the rear of his vehicle where Sgt. Coyle was standing.

PO Justinico stated that as he was approaching § 87(2)(b)'s vehicle, the windows were rolled down and he could not recall any observations he made of the vehicle's contents. After PO Justinico returned § 87(2)(b)'s license and vehicle registration without conducting a warrant check, he saw PO Francis signal him to have § 87(2)(b) exit the vehicle. PO Justinico did not know why PO Francis wanted § 87(2)(b) to exit the vehicle, but nevertheless, he directed § 87(2)(b) to exit his vehicle. § 87(2)(b) complied and once he exited his vehicle, PO

Justinico immediately frisked § 87(2)(b)'s waist, pockets, and legs for weapons. PO Justinico did not feel any bulges on § 87(2)(b)'s clothing as a result of the frisk and denied searching inside § 87(2)(b)'s pockets. Sometime after this frisk, PO Francis informed PO Justinico that he had observed a weapon inside § 87(2)(b)'s vehicle, but it turned out to be a dumbbell. During his CCRB interview, PO Justinico could not recall § 87(2)(b)'s clothing description, if § 87(2)(b) had any noticeable bulges on his clothing, or whether PO Francis' signal was verbal or physical.

During Sgt. Coyle's sworn statement, he indicated that only the front driver-side window was rolled down while the rest of the windows were closed as they approached § 87(2)(b)'s vehicle. He confirmed that he stood near the rear of § 87(2)(b)'s vehicle during the incident and observed PO Francis nod towards PO Justinico as a signal to have § 87(2)(b) exit the vehicle. Once § 87(2)(b) exited his vehicle, PO Justinico led him to the rear of his vehicle where Sgt. Coyle was standing. At that point, PO Francis informed Sgt. Coyle that he observed a metal object inside § 87(2)(b)'s vehicle that appeared to be a weapon. While PO Francis proceeded to search § 87(2)(b)'s vehicle, Sgt. Coyle acknowledged that § 87(2)(b) was frisked, but he did not recall which officer conducted the frisk. Sgt. Coyle denied frisking § 87(2)(b) and indicated that PO Francis had been busy searching § 87(2)(b)'s vehicle. Sgt. Coyle was told that since he denied frisking § 87(2)(b) and PO Francis was busy searching the vehicle, then PO Justinico must have been the officer who frisked § 87(2)(b). Sgt. Coyle only reiterated that he did not know who exactly conducted the frisk and he did not recall § 87(2)(b)'s pockets having been searched.

PO Francis' memo book entry for the incident did not note that § 87(2)(b) was frisked or searched (BR05). During his CCRB interview, PO Francis stated that he did not know if § 87(2)(b) was frisked or searched and he could not recall if § 87(2)(b) had any bulges on his clothing at the time of the incident. PO Francis' statement indicates that he had no conversation with his partners regarding his observation of a weapon inside § 87(2)(b)'s vehicle prior to the vehicle search. Only after searching the vehicle did PO Francis inform PO Justinico that the alleged weapon was a dumb bell.

A frisk is permissible if an officer reasonably suspects that a person is armed and dangerous. People v. DeBour, 40 N.Y.2d 210 (1976) (BR08). According to People v. Ulerio, 781 N.Y.2d 627 (2003), the police may frisk a vehicles' occupants when they have reasonable suspicion of criminal activity (BR09). A search of a person is permissible if a frisk reveals an object which may be a weapon. Patrol Guide Procedure 212-11 (BR10).

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§ 87(2)(g)
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Allegation D – Abuse of Authority: PO Marcel Francis searched the vehicle in which § 87(2)(b) was an occupant.

It is undisputed that PO Francis searched § 87(2)(b)'s vehicle.

§ 87(2)(b)'s three statements to the CCRB are consistent regarding PO Francis' search of his vehicle. § 87(2)(b) stated that after he was led to the rear of his vehicle once PO Justinico frisked and searched him, he observed PO Francis searching inside his vehicle's glove compartment, center console, door panels, and underneath the front and back seats. § 87(2)(b) repeatedly told the officers that he did not provide them with consent to search his vehicle. The only item procured from the vehicle search was a roll of parking ticket envelopes that § 87(2)(b) informed the officers he was already in the process of paying off.

Both Sgt. Coyle and PO Justinico's memo book entries corroborate that from the passenger-side window, PO Francis had observed an object within § 87(2)(b)'s reach that appeared to be a weapon. Sgt. Coyle noted that an inquiry was made of the lungeable and grabbable motor vehicle areas (BR03), while PO Justinico noted an inquiry of the motor vehicle was conducted (BR04).

According to PO Justinico, after he escorted § 87(2)(b) to the rear of the vehicle after conducting the frisk, PO Francis informed him that he had observed a weapon inside the vehicle, but it turned out to be a dumb bell. PO Justinico did not personally see the alleged weapon and he could not recall PO Francis providing a description of the alleged weapon or where he had observed the alleged weapon inside the vehicle. Initially, PO Justinico stated he did not know how PO Francis came to the conclusion that the alleged weapon was a dumb bell, but then stated PO Francis had looked inside the vehicle to ensure there were no weapons. PO Justinico denied the vehicle was searched, but then stated he did not recall if PO Francis had searched inside the vehicle or if any items were taken out of the vehicle.

Sgt. Coyle indicated that after PO Justinico escorted § 87(2)(b) to the rear of the vehicle, PO Francis informed him that he saw a metal object on the rear floorboard inside the vehicle that appeared to be a weapon. Sgt. Coyle did not personally observe the object and he did not recall PO Francis providing any specific descriptions of the object aside from it being a metallic color. Sgt. Coyle acknowledged that PO Francis searched the large grabbable areas inside the vehicle and found the metal object inside an open book bag in the rear of the vehicle, which was then identified as a metal dumb bell. Sgt. Coyle specified that PO Francis did not search inside the vehicle's center console or glove compartment, but he did search inside the front and rear of the

vehicle. Sgt. Coyle did not observe any summons envelopes within § 87(2)(b)'s vehicle and he did not recall any conversation regarding prior summonses.

PO Francis' memo book notes that § 87(2)(b) refused to remove his right hand from behind his driver's seat and refused to lower his back windows. PO Francis further noted that he observed a shiny object, which appeared to be a knife, next to § 87(2)(b)'s right hand (BR05). During PO Francis' CCRB interview, he stated that when they approached § 87(2)(b)'s vehicle, all of the windows were closed, but then indicated the front driver-side window and the rear passenger-side window were partially rolled down. As PO Francis was standing near the rear passenger-side window, he observed § 87(2)(b)'s right hand gripping a shiny object on the floorboard behind his driver seat. PO Francis believed the object was a knife because it had a handle and was a shiny metallic color, but he did not observe a blade on the object. PO Francis made a hand signal to PO Justinico over the vehicle's roof that § 87(2)(b) was holding something. PO Francis and PO Justinico directed § 87(2)(b) several times to remove his hand from behind his seat, but § 87(2)(b) did not comply with their repeated directives. PO Justinico then directed § 87(2)(b) to exit his vehicle, which he finally complied with after being directed to do so multiple times. Once PO Justinico led § 87(2)(b) to the rear of his vehicle where Sgt. Coyle was standing, PO Francis entered § 87(2)(b)'s vehicle without consent through the rear passenger-side door and looked at the floor area behind the driver's seat where he had observed the object. He was unable to clearly see the area so PO Francis entered the rear driver-side door and picked up the shiny object that he then identified as a metal dumb bell. PO Francis asked § 87(2)(b) what the dumb bell was and § 87(2)(b) explained that he used it to work out and that is what he was holding onto. Once PO Francis informed PO Justinico that the object was a dumb bell, § 87(2)(b) was escorted back to his vehicle and allowed to leave. PO Francis did not remember any bags in the rear of § 87(2)(b)'s vehicle and specified he only searched the area behind the driver's seat.

Police officers may search a vehicle upon gaining voluntary consent to search. People v. Keesler, 16 Misc. 3d 45 (2007) (BR11). A vehicle may be searched without a warrant if officers have probable cause to believe that the vehicle contains contraband, evidence of a crime, a weapon, or some means of escape. People v. Smith, A.D. Slip Op 5934 (2nd Dep't 2012) (BR12).

§ 87(2)(g)
[REDACTED]

§ 87(2)(g)

[REDACTED]

§ 87(2)(g)

[REDACTED]

Allegation E – Discourtesy: PO Hector Justinico spoke discourteously to § 87(2)(b)

Allegation F – Discourtesy: PO Marcel Francis spoke discourteously to § 87(2)(b)

In § 87(2)(b)'s email complaint he alleged that the officers made the following statements: “Don’t be a fucking tough guy,” “Where’d you get your law degree from,” “We can make this the worst night of your life,” and “This is your lucky night.” § 87(2)(b)'s email complaint did not allege the aforementioned discourtesies against any specific officer. While providing a phone statement, § 87(2)(b) alleged that PO Justinico told him, “You have a slick mouth, where did you get your law degree?” and “Don’t make this harder than it has to be. This will be the longest fucking night of your life if you don’t cooperate.” § 87(2)(b) also alleged that either PO Justinico or PO Francis told him to “have a great fucking night.” During his CCRB interview, § 87(2)(b) alleged that PO Justinico stated, “Stop being a smart ass. As long as you’re going to be a wise ass, where did you get your fucking law degree fam?” He further alleged that either PO Justinico or PO Francis told him, “This is the luckiest fucking night of your life.”

When PO Justinico was asked during his CCRB interview if he had used any profanity against § 87(2)(b) during the incident, he stated, “I don’t think so.” PO Justinico did not recall calling § 87(2)(b) a “smart ass,” “wise ass,” or asking him “where did you get your fucking law degree fam?” When PO Justinico was asked if he told § 87(2)(b) “Don’t be a fucking smart ass” or made a statement to the effect of “this is the worst/luckiest fucking night of your life,” he replied, “No. Don’t recall.” PO Justinico was asked if his answer was a “no” or “I don’t recall” and he specified that his answer was “I don’t recall.” PO Justinico did not recall overhearing PO Francis make the aforementioned profane statements or having used any profanity against § 87(2)(b).

When Sgt. Coyle was asked if he overheard PO Justinico make statements towards § 87(2)(b) about being a “smart ass” or “where did you get your fucking law degree,” Sgt. Coyle stated he did not believe so and he did not recall that. When Sgt. Coyle was asked the same question regarding PO Francis, he firmly stated no. With regards to the following statements, “Don’t be a fucking smart ass. We can make this the worst night of your life” and “This is the luckiest fucking night of your life,” Sgt. Coyle stated he did not recall hearing PO Justinico or PO Francis make the aforementioned statements towards § 87(2)(b)

PO Francis denied using profanity against § 87(2)(b) during the incident and denied making the following statements: “Stop being a smart ass. As long as you’re going to be a wise ass, where did you get your fucking law degree fam” and “This is the luckiest fucking night of your life.” PO Francis stated that neither PO Justinico nor Sgt. Coyle used profanity against § 87(2)(b) or made any of the aforementioned profane statements during the incident.

NYPD Patrol Guide Procedure 203-09 instructs officers to be courteous and respectful when interacting with the public (BR13).

§ 87(2)(g)

[REDACTED]

§ 87(2)(g)

[REDACTED]

Allegation G – Abuse of Authority: PO Hector Justinico refused to provide his name and shield number to § 87(2)(b)

Allegation H – Abuse of Authority: Sgt. John Coyle refused to provide his name and shield number to § 87(2)(b)

Allegation I – Abuse of Authority: PO Marcel Francis refused to provide his name and shield number to § 87(2)(b)

All three of § 87(2)(b)'s statements were consistent with him requesting all of the officers' names and shield numbers during the incident, but none of the officers responded to his requests. After his vehicle was hit by the unmarked police vehicle, § 87(2)(b) was able to see Sgt. Coyle's shield number, which he used to file this complaint.

Sgt. Coyle, PO Justinico, and PO Francis' memo book entries corroborate that § 87(2)(b) requested all of the officers' names and shield numbers and the requested information was provided to him. In Sgt. Coyle's interview, he confirmed that he and PO Francis provided their names and shield numbers to § 87(2)(b) while he believed PO Justinico did so as well. PO Francis confirmed that § 87(2)(b) had requested their names and shield numbers and stated that all of the officers verbally provided the requested information. During PO Justinico's interview, he could not recall if § 87(2)(b) had requested any identifying information from him or his partners and he could not recall ever providing his name and shield number. By virtue of PBA Luis Albert, who stated that PO Justinico did not recall that specific information at the time of the interview, but his memo book noted that names and shield were requested and provided to § 87(2)(b) at the time of the incident, PO Justinico confirmed that what PBA Albert stated was correct.

§ 87(2)(g)

Squad: 15

Investigator: _____
Signature Print Date

Pod Leader: _____
Title/Signature Print Date

Attorney: _____
Title/Signature Print Date